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Bombay High Court

Rajendra Asaram Charkha vs Income Tax Officer Ward - I Jalna And Ors on 10 September, 2026

Author: Nitin B. Suryawanshi

Bench: Nitin B. Suryawanshi

CNR No : HCBM030195662025

{1} 963-wp-6355-2025

IN THE HIGH COURT OF JUDICATURE OF BOMBAY

BENCH AT AURANGABAD

963 WRIT PETITION NO. 6355 OF 2025

Rajendra Asaram Charkha

VERSUS

Income Tax Officer Ward - I Jalna And Others

...

Ms. Rutuja N. Pawar a/w Ms. Sneha More and Ms. Pranaya Ramesh,
Advocates for the Petitioner

Mrs. Kalpalata Patil Bharaswadkar, Senior Standing Counsel for
Respondents No. 1 and 2

Mr. R.R. Bangar, Advocate for Respondents No. 3 and 4

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CORAM : NITIN B. SURYAWANSHI AND

ABASAHEB D. SHINDE, JJ.

DATE : 10th SEPTEMBER, 2026

PER COURT :

1. This petition challenges the notice issued under Section 148 of the Income Tax Act, 1961, dated 29.03.2025 for the assessment year 2019-2020 on various grounds.

2. It is the case of the Petitioner that the impugned notice is beyond the period of three years as contemplated by Section 149(1) (b) of the Income Tax Act, said notice is issued on the alleged escaped income of Rs. 10,97,188/-, which is less than 50 Lakhs and therefore same is without jurisdiction and time barred. Another ground is that the alleged escaped income chargeable to tax in the present case does not pertain to or is not represented in the form of "an asset".

Therefore, the impugned notice is vitiated.

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{2} 963-wp-6355-2025

In support of the submissions reliance is placed on the decision of Delhi High Court in Mohd. Athar Anjum vs. Assistant Commissioner of Income-tax, W.P.(C) No. 4196 of 2025 and L-1 Identity Solutions Operating Company (P.) Ltd. vs. Assistant Commissioner of Income-tax, W.P. (C) No. 4845 of 2025.

3. Learned Advocate for Respondents No. 1 and 2 opposed the petition by relying on para 6 of decision in M/s. Godrej Sara Lee Limited vs. The Excise and Taxation Officer-Cum- Assessing Authority and Others, (2023) AIR (SC) 781, thereby questioning the maintainability of the petition.

4. We are of the view that Petitioner has made out a prima facie case for grant of ad-interim relief.

5. Issue notice for final disposal to the respondents, returnable on 08.10.2026.

6. Mrs. Kalpalata Patil Bharaswadkar, Senior Standing Counsel waives service of notice for Respondents No. 1 and 2. Learned Advocate Mr. R.R. Bangar waives service of notice for Respondents No. 3 and 4.

7. In the meanwhile, there shall be ad-interim relief in terms of

prayer clause 'C', which is as follows:

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{3} 963-wp-6355-2025

c. That pending the hearing and final disposal of the present petition, this Hon'ble Court may be pleased to stay the operation of the said Notice u/s. 148 dated 29.03.2025 for A.Y. 2019-20.

(ABASAHEB D. SHINDE, J.) (NITIN B. SURYAWANSHI, J.)

Bhagyawant Punde

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